

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 1945 OF 2017

Md. Lutfor Rahman

----- Plaintiff-Respondent-Petitioner

=Versus=

Most. Nazmun Nahar Mukta

---Defendant-Appellant-Opposite Party

Mr. M. A. Muntakim, Advocate

----- For the Petitioner

Mr. Md. Sagir Hossain, Advocate

----- For the Opposite Party

Heard and Judgment on 28.03.218

At the instance of the present plaintiff-respondent-petitioner, Md. Lutfor Rahman, this Rule has been issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 24.08.2015 passed by the learned Additional District Judge, Ist court, Dhaka in Family Appeal No.79 of 2015 so far it relates to the direction upon the petitioner to get his children admitted in a residential school at Dhaka thereby modifying the judgment and decree dated 01.12.2014 passed by the learned Senior Assistant Judge, 2nd Additional Assistant court, Dhaka in Family Suit No.297 of 2013 should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present-petitioner as the plaintiff filed the Guardianship Custody Suit No.295 of 2013 for custody of the child Shoaib Ahmed Rafsan, subsequently, renamed as Md. Rafsan Hasan, in the court of the learned

Assistant Judge, Ist court, Dhaka which was renumbered as the Family Suit No.297 of 2013 after being transferred to the court of the learned Assistant Judge, 2nd Additional Court, Dhaka.

After hearing the parties the learned trial court decreed the suit and ordered the minor son Rafsan to be handed over to the petitioner (the father) by the opposite party (the mother) with some conditions for contact of the child by the mother. Being aggrieved the present-opposite party as an appellant preferred the Family Appeal No.79 of 2015 in the court of the learned District Judge, Dhaka which was heard by the learned Additional District Judge, court No.1, Dhaka who by his judgment and decree passed by the impugned judgment affirming the judgment of the trial court. However, the learned appellate court made some remarks in reference to C.R. Case No.314 of 2010 wherein the parties entered into an agreement with some conditions, including, a condition to get admitted the twin children of the petitioner and the opposite party into a residential school. This revisional application has been filed against the above finding of the learned appellate court below by passing the above remarks. The present-petitioner filed this revisional application under Section 115(1) of the Code of Civil Procedure challenging only the above remark/decision of the learned appellate court below and the present Rule has been issued thereupon.

Mr. M. A. Muntakim, the learned Advocate appearing for the petitioner submits that both the courts below concurrently found that the

twin children of the family between the petitioner and the opposite party should be under the custody of the father, the present-petitioner who are at present undertaking their study in an english medium school known as “Scholars School and College” situated in House No.91/1, Road No.11/A, Dhanmondi Residential Area, Dhaka-1205 but the remark made by the learned appellate court below would seriously interrupt the ongoing education and life style of the children, as such, decision regarding a residential school should be omitted and modified so far it relates to the residential school, as such, this Court should interfere upon the impugned judgment so far it relates to the said remark, as such, the Rule should be made absolute.

The Rule has been opposed by the present-opposite party No.1 by filing a Counter-affidavit.

Mr. Md. Sagir Ahmed, the learned Advocate appearing for the opposite party submits that both the courts below properly referred to a settlement agreement (সিমাংশাপত্র) on 04.09.2010 entered by the parties in the C.R. Case No.314 of 2010 filed under ধারা ৪ যৌতুক নিবন্ধন আইন wherein the parties agreed that the father would get the children admitted in a residential school, as such, the leaned appellate court below committed no error of law by giving a direction upon the present-petitioner regarding a residential school, therefore, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the

revisional application filed under Section 115(1) of the Code of Civil Procedure along with the Annexures, in particular, the judgment passed by the learned appellate court below and also therein considering the Supplementary-affidavit and Counter-affidavit filed by the parties, it appears to me that the present-petitioner as the plaintiff filed the Family Suit No.295 of 2013 in the court of the learned Assistant Judge, court No.1, Dhaka for taking a custody of a child, namely, Md. Rafsan Hasan after divorce between the present-petitioner and the opposite party. The said suit was later on transferred to the learned Assistant Judge, Additional court No.2, Dhaka and the suit was renumbered as the Family Suit No.297 of 2013. It further appears to me that both the courts below came to a concurrent finding of the custody of the said child born within wedlock of the parties along with another child being the twin children.

Despite the above concurrent findings of the learned courts below the present revisional application was filed challenging a direction regarding admission in a residential school by the petitioner. Regarding the above, I have carefully examined the specific direction under challenge in this revisional application and also the submissions made by the parties. I consider that the children are presently safe under the custody of the present father which was affirmed by the courts below. I also found that the learned appellate court below taken under consideration a requirement for getting admission of the children in a

residential school on the basis of an agreement which has not been exhibited in either of the courts below.

In this regard, the above matter of residential school, I am satisfied that the children are undertaking their education in a private english medium school known as “Scholar School and College” situated in the Dhanmondi Residential area. The learned Advocate appearing for the opposite party finally submitted today that the mother being the present-opposite party also does not want to disturb the education in the middle of the education year, as such, the direction to get the children be admitted in a residential school would certainly hamper the education and mental conditions of the children.

In view of the above, I am of the opinion that the impugned direction passed by the learned appellate court below regarding the admission in a residential school would certainly hamper academic, mental and physical hardship upon the children, as such; the impugned direction needed to be omitted from the judgment passed by the learned appellate court below. I am, therefore, inclined to interfere upon the impugned direction passed by the learned appellate court below so far it relates to get the children admitted in a residential school.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The ad-interim order of stay granted at the time of issuance of the Rule upon all further proceedings of Family Execution Suit No.26 of

2015 now pending in the court of the learned Senior Assistant Judge, court No.2, Dhaka is hereby recalled and vacated.

The Section is directed to communicate this judgment and order to the court concern immediately.